BEFORE THE DIRECTOR OF THE

ARIZONA DEPARTMENT OF HEALTH SERVICES

In the Matter of: Uncle Harry Corp, Appellant.	Case No.: 2024C-MMR-0040-DHS NOTICE OF INFORMAL SETTLEMENT CONFERENCE

PURSUANT TO the request of the Appellant, you are hereby notified that the Arizona Department of Health Services ("Department") will conduct an informal settlement conference at 150 W. 18th Ave., Phoenix, AZ 85007, Suite 415B on September 14, 2023 at 1:00 p.m. to discuss the Department's July 19, 2023 Notice of Intent to Revoke Dispensary Registration Certificate.

YOU ARE NOTIFIED that the conference will be conducted under the authority of and in accordance with Arizona Revised Statutes ("A.R.S.") Title 41, Chapter 6, Article 10.

YOU ARE ADVISED that you have the right to be represented by counsel, or to proceed without counsel. A.R.S. § 41-1092.07.

Should you desire to hold this informal settlement conference telephonically, please contact the Clerk of the Department at (602) 542-1020 or via email at acr@azdhs.gov prior to the scheduled date.

PURSUANT TO A.R.S. § 41-1092.06(B), YOU ARE FURTHER NOTIFIED that statements, either written or oral, made by the Appellant at the conference, including written documents, created or expressed solely for the purpose of settlement negotiations are

inadmissible in any subsequent administrative hearing. The parties participating in the settlement conference shall waive their right to object to the participation of the agency representative(s) in the final administrative decision.

Persons with a disability may request a reasonable accommodation, such as a sign language interpreter, by contacting the Clerk of the Department, Arizona Department of Health Services, 150 N. 18th Ave., Room 200, Phoenix, Arizona 85007, (602) 542-1020. Requests should be made as early as possible to allow time to arrange the accommodation.

Dated this 22nd day of August, 2023.

Stacie Gravito
Director's Designee

ORIGINAL filed on the 22nd day of August, 2023 with:

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste. 200
Phoenix, AZ 85007

COPY of the foregoing sent by certified mail return receipt requested on the 22nd day of August, 2023:

Ramzi Dugum, Owner
Michael Anton, Owner
Uncle Harry Corp.
2937 W. Thomas Rd.
Phoenix, AZ 85017

Heather Boysel
Gammage & Burnham, PLC
40 N Central Avenue 20th floor
Phoenix, Az 85004

COPIES of the foregoing sent by electronic/interdepartmental/regular mail on the 22nd day of August, 2023, to:

Ramzi Dugum, Owner
Michael Anton, Owner
Uncle Harry Corp.
2937 W. Thomas Rd.
Phoenix, AZ 85017

Heather Boysel, Attorney
Gammage & Burnham, PLC
40 N Central Avenue 20th floor
Phoenix, Az 85004
hboysel@gblaw.com

Gregory W. Falls
Matthew A. Hesketh
Shayna Stuart
Sherman & Howard, LLC
2555 East Camelback Road, Suite 1050
Phoenix, Arizona 85016
gfalls@shermanhoward.com
mhesketh@shermanhoward.com
sstuart@shermanhoward.com

Thomas Salow, Assistant Director
Megan Whitby, Deputy Assistant Director
Kimberly Crawford, Deputy Section Chief
ADHS/Division of Public Health Services-Licensing Services

150 N. 18th Ave.
Phoenix, AZ 85007
PHLENF@azdhs.gov

Kay Abramsohn, Administrative Law Judge
Office of Administrative Hearings
1740 W. Adams St., Lower Level
Phoenix, AZ 85007

BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS

In the Matter of: Uncle Harry Corp., Appellant.	))))))))))))	Case No.: 2024C-MMR-0040-DHS NOTICE OF HEARING AND APPOINTMENT OF ADMINISTRATIVE LAW JUDGE

PURSUANT TO the request of the Appellant, you are hereby notified that the Office of Administrative Hearings, on behalf of the Arizona Department of Health Services (the "Department"), will conduct a hearing at 1740 W. Adams St., Lower Level, Phoenix, AZ 85007 on September 27, 2023 at 8:00 a.m. to consider the Department's July 19, 2023 Notice of Intent to Revoke Dispensary Registration Certificate.

YOU ARE ADVISED that the hearing will be conducted under the authority of and in accordance with Arizona Revised Statutes ("A.R.S.") Title 36, Chapter 28.1, and Title 41, Chapter 6, Article 10, and Arizona Administrative Code ("A.A.C.") Title 9, Chapter 17.

YOU ARE ADVISED that you have the right to be represented by counsel or to proceed without counsel. A.R.S. § 41-1092.07.

Any supporting documents to this matter submitted to the Clerk of the Department at the time of the request for an administrative hearing are not part of the administrative record with the exception of documents that set in place the request for an administrative hearing. Documents may be submitted into evidence at the scheduled administrative hearing before the assigned administrative law judge.

YOU ARE FURTHER ADVISED that failure to appear at the scheduled hearing may result in the administrative law judge dismissing the matter or otherwise deciding the case against you.

The Office of Administrative Hearings has appointed Kay Abramsohn, Office of Administrative Hearings, as administrative law judge to conduct such hearing and issue such orders pursuant to the Office of Administrative Hearings' procedural rules and the procedural rules that the administrative law judge determines are necessary to properly adjudicate the above-captioned matter. **Information regarding procedures, practice pointers, on-line filing of motions, such as making requests to appear telephonically, is available through Office of Administrative Hearings' website at www.azoah.com.**

In accordance with A.R.S. § 41-1092.08, the administrative law judge shall submit to the Director of the Department a written recommendation including proposed findings of fact, conclusions of law, and a recommended decision regarding the disposition of this matter.

The original of all correspondence and pleadings to be filed in the matter should be directed to the Office of Administrative Hearings, 1740 W. Adams St., Lower Level, Phoenix, AZ 85007. Please provide copies to all other parties and to the agency at the address listed below.

Persons with a disability may request a reasonable accommodation, such as a sign language interpreter, **by visiting www.azoah.com, and submitting an on-line motion, by mail** to the Office of Administrative Hearings, 1740 W. Adams St., Lower Level Phoenix, AZ or **by calling (602) 542-9826**. Requests should be made as early as possible to allow time to arrange the accommodation.

Dated this 22nd day of August, 2023.

Stacie Gravito
Director's Designee

ORIGINAL filed on the 22nd day of August, 2023 with:

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste. 200
Phoenix, AZ 85007

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Megan Whitby, Deputy Assistant Director
Kimberly Crawford, Deputy Section Chief
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PHLENF@azdhs.gov

Kay Abramsohn, Administrative Law Judge
Office of Administrative Hearings
1740 W. Adams St., Lower Level
Phoenix, AZ 85007

CLEAR SUBMIT

OFFICE OF ADMINISTRATIVE HEARINGS

REQUEST FOR HEARING

DATE:	08/11/2023
TO:	Casemanagement@azoah.com
FROM:	Stephanie Vaca
EMAIL (REQUIRED):	stephanie.vaca@azdhs.gov
DOCKET NO.:	2024C-MMR-0040-DHS

CAPTION (REQUIRED)

In the Matter of
Uncle Harry Corp

Hearing Type *
Date of Request 08/11/2023 *Purposed Date/Time

*** The date MUST be within 60 days of an appealable agency action hearing request, or within 60 days of this contested case hearing request UNLESS at least one of the following factors are true:**

☐ **All parties agree to a date beyond 60 days** ☐ **OAH to set case for intervening prehearing within 60 days**

BY CHECKING A BOX, THE AGENCY IS CERTIFYING TO THE OAH THAT THE FACTORS ARE TRUE.

(REQUIRED) NAME AND ADDRESS

Respondent	Complainant	Appellee
Ramzi Dugum, Owner Michael Anton, Owner Uncle Harry Corp. 2937 W. Thomas Rd. Phoenix, AZ 85017	Heather Boysel Gammage & Burnham PLC 40 N Central Avenue 20th floor Phoenix, Az 85004	Gregory W. Falls gfalls@shermanhoward.com Matthew A. Hesketh MHesketh@shermanhoward.com Sherman & Howard 2555 E. Camelback Rd., Ste. 1050 Phoenix, AZ 85016
Phone:	Phone: (602) 256-0566	Phone: (602) 240-3000
Email:	Email: hboysel@gblaw.com	Email:

OAH USE ONLY:

Assigned ALJ: Kay Abramsohn

ASSIGNED AS			
HEARING		**PREHEARING (if applicable)**	
DATE:	9/27/2023	DATE:	
TIME:	8:00	TIME:	
LOCATION:		LOCATION:	

SPECIAL ADVISEMENT	
FROM OAH	FROM AGENCY

BEFORE THE DIRECTOR OF

THE ARIZONA DEPARTMENT OF HEALTH SERVICES

In the Matter of: Uncle Harry Corp.	)	Docket No.: 2023C-MMR-T0248-DHS NOTICE OF INTENT TO REVOKE DISPENSARY REGISTRATION CERTIFICATE AND NOTICE OF RIGHT TO REQUEST ADMINISTRATIVE HEARING

I. JURISDICTION

The Arizona Department of Health Services (the "Department") is charged by Arizona Revised Statutes, A.R.S. § 36-132(A)(1), with the power and duty to enforce the body of laws that protect the health of the people of the State of Arizona. In addition, A.R.S. § 36-136(G) authorizes the Director of the Department (the "Director") to "make and amend rules necessary for the proper administration and enforcement of the laws relating to the public health."

The Arizona Medical Marijuana Act (the "AMMA"), A.R.S. § 36-2801 *et seq*., was passed in November 2010 and became effective December 2010. Rules adopted by the Department to implement the AMMA, Arizona Administrative Code ("A.A.C.") R9-17-101 *et seq*., became effective April 14, 2011, as thereafter amended (the "Rules"). *See* A.R.S. § 36-2803 (giving the Department rulemaking authority under the AMMA).

The Department was required to adopt Rules "[g]overning nonprofit medical marijuana dispensaries to protect against diversion and theft[,]" including "[m]inimum oversight requirements," "[m]inimum recordkeeping requirements," and "minimum security requirements." A.R.S. § 36-2803(A)(4); *see also* A.R.S. §§ 36-2804(B)(1)(c), -2806(B) (dispensary must have operating procedures consistent with Rules for oversight, including procedures to ensure accurate record-keeping and adequate security measures). The AMMA and Rules provisions applicable to this matter include the following:

Under A.R.S. § 36-2804.01(A), "[a] nonprofit medical marijuana dispensary agent . . . shall be registered with the [D]epartment before volunteering or working at a nonprofit medical marijuana dispensary." *See also* A.A.C. R9-17-310(A)(6)(a), -310(A)(8)(same).

Under the Rules, "[a] dispensary shall establish and implement an inventory control system for the dispensary's medical marijuana and marijuana products that documents . . . [a]cquisitions according to subsection (B)," which authorizes acquisitions from the dispensary's cultivation site, another dispensary, a licensed adult-use marijuana establishment, a qualifying patient, or a designated caregiver. A.A.C. R9-17-316(C)(1)(b); *see also* A.A.C. R9-17-316(C)(1)(a), (h) (requiring the dispensary to document its inventory of marijuana and marijuana products at the beginning and ending of each day). This includes an inventory control system that identifies the name and registry identification number of the dispensary providing the medical marijuana or marijuana product. *See* A.A.C. R9-17-316(C)(3)(b)(i).

Under A.R.S. § 36-2806(C), "[a] registered nonprofit medical marijuana dispensary shall implement appropriate security measures to deter and prevent the theft of marijuana and unauthorized entrance into areas containing marijuana." A medical marijuana dispensary shall have electronic monitoring, including video cameras that provide "coverage of all entrances to and exits from limited access areas and all entrances to and exits from the building, capable of identifying any activity occurring in or adjacent to the building." A.A.C. R9-17-318(G)(1)(c)(iii)(1). Additionally, a medical marijuana dispensary shall have: (1) a video camera in each grow room capable of identifying any activity occurring within the room in low light conditions, *see* A.A.C. R9-17-318(G)(1)(c)(v); (2) a failure notification system that provides an audible and visual notification of any failure in the electronic monitoring system, *see* A.A.C. R9-17-318(G)(1)(c)(vii); and (3) sufficient battery backup for video cameras and recording equipment to support at least five minutes of recording in the event of a power outage, *see* A.A.C. R9-17-318(G)(1)(c)(viii).

The Department may revoke a nonprofit medical marijuana dispensary's registration certificate if the dispensary is not in substantial compliance with the AMMA and the Rules. A.R.S. § 36-2816(F). In addition, the Department was required to adopt rules governing the procedures

for "suspending or revoking the registration certificate of nonprofit medical marijuana dispensaries that violate [the AMMA] or the [R]ules." A.R.S. § 36-2803(A)(4)(e). Based on this authority, the Department adopted A.A.C. R9-17-322(D), which authorizes the Department to revoke the dispensary registration certificate of a dispensary that:

1. Does not comply with the requirements of the AMMA or the Rules; or
2. Fails to implement the policies and procedures or comply with the statements provided to the Department with the dispensary's application.

II. DISPENSARY REGISTRATION CERTIFICATE HISTORY

Uncle Harry Corp. ("Uncle Harry") applied for and was awarded a dispensary registration certificate (No. 00000110DCDE00541508), effective October 6, 2016 (the "Certificate"). The Non-Profit Medical Marijuana Dispensary is currently located at 17036 N. Cave Creek Rd., Phoenix, AZ 85032 (the "Dispensary"). The Certificate has a current expiration date of March 6, 2025.

III. REASONS FOR DEPARTMENT'S INTENT TO REVOKE THE CERTIFICATE

On January 12, 2023, the Department conducted a compliance inspection at the Dispensary. During the inspection, Department Compliance Officers (the "Compliance Officers") observed six (6) violations of the AMMA and the Rules, which were noted in a Statement of Deficiencies that was subsequently provided to Uncle Harry ("Dispensary SOD"). The Dispensary SOD includes the following violations.

A. Violation of A.A.C. R9-17-310(A)(6)(a) and -310(A)(8)

In violation of A.A.C. R9-17-310(A)(6)(a), the Dispensary failed to "[e]nsure that each dispensary agent or marijuana facility agent associated with the [D]ispensary has the applicable registry identification card or marijuana facility agent license in the dispensary agent's or marijuana facility agent's immediate possession" when the dispensary agent or marijuana facility agent is "[w]orking or providing volunteer services at the [D]ispensary or the [D]ispensary's cultivation site."[1] A.A.C. R9-17-310(A)(6)(a). The Dispensary also failed to ensure that it did "[n]ot allow an

[1] "[I]f a marijuana facility agent as defined in [A.R.S.] § 36-2850 is registered with the [D]epartment pursuant to [A.R.S.] § 36-2855, the person may act in the capacity of a nonprofit medical marijuana dispensary agent without

individual who does not possess a dispensary agent registry identification card . . . or a marijuana facility agent license" to "[b]e employed by the dispensary" or "[p]rovide volunteer services at or on behalf of the dispensary." A.A.C. R9-17-310(A)(8).

An interview with an employee of a third-party contractor revealed that they do not have a Facility Agent card. An interview with FA2 revealed that the employee of the third-party contractor was working under their supervision while at the cultivation site. However, security footage revealed that the contracted employee was not supervised by FA2 or any other employee at all times while working around marijuana. Facility Agents include all employees and volunteers. There is no exception for an employee or volunteer working under the supervision of another Facility Agent.

B. Violation of A.A.C. R9-17-316(C)(1)(b) and -316(C)(3)(b)(i)

The Dispensary did not "implement an inventory control system" that documents acquisitions from other dispensaries. A.A.C. R9-17-316(C)(1)(b). The Dispensary failed to "establish and implement an inventory control system for the [D]ispensary's medical marijuana and marijuana products that documents" "[t]he name and registry identification number of the [D]ispensary providing the medical marijuana or marijuana product," which is necessary to acquire "medical marijuana or a marijuana product from another dispensary or a marijuana establishment." A.A.C. R9-17-316(C)(3)(b)(i).

An observation of the cultivation site revealed that the Dispensary did not implement an inventory control system that includes the name and registry identification number of the marijuana product in order to acquire medical marijuana product "seeds" from another dispensary or a marijuana establishment. Compliance Officers discovered that the Dispensary only documents marijuana product "seeds" once they are planted and does not document all marijuana product "seeds" upon intake.

During an interview with FA3, it was reported that FA3 was told not to inventory any of the seeds in any inventory system until the seeds were planted. FA3 revealed that there were not

registering pursuant to [the AMMA]." A.R.S. § 36-2804.01(F).

any records that included a shipping manifest to log and inventory the seeds stored at the cultivation site.

C. Violation of A.A.C. R9-17-318(G)(1)(c)(iii)(1)

The Dispensary failed to have "[e]lectronic monitoring" that includes "[v]ideo cameras [p]roviding coverage of all entrances to and exits from limited access areas and all entrances to and exits from the building" that are capable of identifying any activity occurring in or adjacent to the building" in order to "prevent unauthorized access to medical marijuana at the [D]ispensary and, if applicable, the [D]ispensary's cultivation site." A.A.C. R9-17-318(G)(1)(c)(iii)(1).

Security footage revealed that the cameras in room four were not able to provide coverage of all entrances to and exits from the limited access area or activity occurring in the room. In fact, it appeared to the Compliance Officers that the cameras in room four were non-operational.

An interview with FA1 revealed that the cameras were still operational and recording; however, FA1 did not have the password to access them and their footage could not be reviewed.

D. Violation of A.A.C. R9-17-318(G)(1)(c)(v)

The Dispensary failed to have "[e]lectronic monitoring" that includes a "video camera in each grow room capable of identifying any activity occurring within the grow room in low light conditions" in order to "prevent unauthorized access to medical marijuana at the [D]ispensary and, if applicable, the [D]ispensary's cultivation site." A.A.C. R9-17-318(G)(1)(c)(v).

Security footage revealed that the video cameras in grow room 3 are not capable of identifying any activity occurring within the grow room in low light conditions.

E. Violation of A.A.C. R9-17-318(G)(1)(c)(vii)

The Dispensary failed to have "[e]lectronic monitoring" that includes a "failure notification system that provides an audible and visual notification of any failure in the electronic monitoring system" in order to "prevent unauthorized access to medical marijuana at the [D]ispensary and, if applicable, the [D]ispensary's cultivation site." A.A.C. R9-17-318(G)(1)(c)(vii).

A review of the electronic monitoring system revealed that the failure notification system could not provide an audible notification when a camera was pulled from the DVR. An interview

with FA1 revealed that the cultivation site lost power earlier in the week and that may have changed the settings on the security equipment.

F. Violation of A.A.C. R9-17-318(G)(1)(c)(viii)

The Dispensary failed to have " [s]ufficient battery backup for video cameras and recording equipment to support at least five minutes of recording in the event of a power outage" in order to "prevent authorized access to medical marijuana at the [D]ispensary and, if applicable, the [D]ispensary's cultivation site." A.A.C. R9-17-318(G)(1)(c)(viii).

An observation of the electronic monitoring system's battery backup revealed that the battery could only support two minutes of recording in the event of a power outage.

IV. FINDINGS, NOTICES, AND INSTRUCTIONS TO REQUEST A HEARING

YOU ARE HEREBY NOTIFIED that based on the foregoing and pursuant to A.R.S. § 36-2816(F) and A.A.C. R9-17-322(D), the Department intends to revoke Uncle Harry's Certificate (No. 00000110DCDE00541508) for failure to comply with the AMMA and the Rules as set forth herein.

YOU ARE ADVISED that you have the right to request a hearing before the Arizona Office of Administrative Hearings and to have an Administrative Law Judge review this Notice of Intent to Revoke Dispensary Registration Certificate ("Notice"). A.R.S. § 41-1092.03(B). You may request a hearing by submitting a written request to the Clerk of the Department, Arizona Department of Health Services, **within thirty (30) calendar days** after this Notice is received. If you submit a timely request for a hearing, you will be given an opportunity at the hearing to respond to this Notice and to present evidence and argument on all relevant issues. A.R.S. § 41-1092.07(D). You have the right to be represented by counsel or to proceed without counsel. A.R.S. § 41-1092.07(B).

IF YOU TIMELY REQUEST A HEARING, YOU ALSO MAY REQUEST that the Department hold an informal settlement conference by submitting a written request to the Department **no later than twenty (20) calendar days** before the hearing scheduled in the matter. *See* A.R.S. § 41-1092.06(A). Such request shall be sent to Megan Whitby, Deputy Assistant

Director, Public Health Licensing, Arizona Department of Health Services, 150 N. 18th Ave., Suite 410, Phoenix, Arizona 85007.

IF YOU DO NOT TIMELY REQUEST A HEARING, the Department's revocation of Uncle Harry's Certificate (No. 00000110DCDE00541508) **will be automatically effective immediately upon the expiration of the thirty (30) day period following receipt of this Notice,** and the Department's revocation of Uncle Harry's Certificate will not be subject to judicial review. A.R.S. §§ 12-902(B), 41-1092.08(H).

DATED this 19th day of July, 2023.

ARIZONA DEPARTMENT OF HEALTH SERVICES

McKenna Baker
Director's Designee

ORIGINAL filed this 19th day of July, 2023, with:

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste 200
Phoenix, AZ 85007

COPY of the foregoing mailed certified mail,
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Michael Anton, Owner
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Tom Salow, Assistant Director
Megan Whitby, Deputy Assistant Director
Kim Crawford, Deputy Bureau Chief
Darryl McCray, Marijuana Program Compliance Manager
ADHS
150 N. 18th Ave.
Phoenix, AZ 85007

GAMMAGE & BURNHAM, PLC
ATTORNEYS AT LAW
40 NORTH CENTRAL AVENUE
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Heather J. Boysel
hboysel@gblaw.com

Lindsay Schube
lschube@gblaw.com

WRITER'S DIRECT LINE
(602) 256-4401

WRITER'S DIRECT LINE
(602) 256-4471

August 11, 2023

VIA US CERTIFIED MAIL

Clerk of the Department
Arizona Department of Health Services
150 N. 18th Ave., Ste 200
Phoenix, AZ 85007

Re: Uncle Harry Corp.
Docket No. 2023C-MMR-T0248-DHS
Request for Hearing and Informal Settlement Conference re Notice of Intent to Revoke Dispensary Registration Certificate No. 00000110DCDE00541508

Dear Clerk of the Department:

Our firm represents Uncle Harry Corp. ("**Uncle Harry**"), with regard to the Notice of Intent to Revoke Dispensary Registration Certificate issued by the Arizona Department of Health Services on July 19, 2023 (the "**Notice of Intent**").

Pursuant to A.R.S. § 41-1092.03, Uncle Harry respectfully requests a hearing in this matter. In addition, Uncle Harry requests that the Department hold an informal settlement conference in advance of the hearing as required under A.R.S. § 41-1092.06(A). We have copied Megan Whitby, as required in the Notice of Intent, on this request.

Please send all future communications regarding this matter, including the Notice of Hearing, to me at the address located in the header of this letter.

Sincerely,

GAMMAGE & BURNHAM

By
Heather J. Boysel
Lindsay C. Schube

Clerk of the Department
Arizona Department of Health Services

cc: Tom Salow, Assistant Director
Megan Whitby, Deputy Assistant Director
Kim Crawford, Deputy Bureau Chief
Darryl MCray, Marijuana Program Compliance Manager
Public Health Licensing
Arizona Department of Health Services
150 N. 18th Ave., Suite 410
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